

The Tamil Nadu Beedi Industrial Premises (Regulation of Conditions of Work) Act, 1958

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State of Tamilnadu- Act

The Tamil Nadu Beedi Industrial Premises (Regulation of Conditions of Work) Act, 1958

TAMILNADU

India

The Tamil Nadu Beedi Industrial Premises (Regulation of Conditions of Work) Act, 1958

Act 32 of 1958

Published on 3 December 1958

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The Tamil Nadu Beedi Industrial Premises (Regulation of Conditions of Work) Act, 1958

Tamil Nadu Act

32 of 1958

Received the assent of the President on the 3rd December 1958 and Published in the Port St. George Gazette on the 10th December 1958.

An Act to regulate the conditions of work in beedi industrial premises in the State of Tamil Nadu.

Whereas it is expedient to regulate the conditions of work in beedi industrial premises in the State of Tamil Nadu.

Be it enacted in the Ninth Year of the republic of India as follows:-

1.

Short title, extent and commencement.

- This Act may be called the Tamil Nadu Beedi Industrial Premises (Regulation of Conditions of Work) Act, 1958.

(2)

It extends to the whole of the State of Tamil Nadu.

(3)

It shall come into force on such date as the Government may by notification, appoint, and different dates may be appointed for different areas and for different provisions of this Act.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"adult" means a person who has completed eighteen years of age;

(b)

"Beedi industrial premises" means any place or premises, including the precincts thereof, in any part of which any manufacturing process connected with the production of beedies is being carried on or is ordinarily carried on with or without the aid of power;

(c)

"beedi industry" means any industry relating to the manufacture of beedies;

(d)

"child" means a person who has not completed fourteen years of age;

(e)

"competent authority" means any officer authorized by the Government by notification to perform the functions of the competent authority under this Act for such area as may be specified in the notification;

(f)

"employee" means a person employed directly or through any agency whether for wages or not in any beedi industry to do any work, skilled, unskilled, manual or clerical and includes any person who is employed in such industry and declared by the Government by notification to be an employee for the purposes of this Act;

(g)

"employer" means the person who has the ultimate control over the affairs of any beedi industrial premises or who has, by reason of his advancing money, supplying goods or otherwise, a substantial interest in the control of the affairs of any beedi industrial premises and includes-

(i)

a proprietor or a registered user of a trade mark registered under the [Trade Marks Act, 1940 (Central Act V of 1940)]

[This Act Mas repealed and re-enacted as the Trade and Merchandise Act, 1999 (Central Act 47 of 1999).]

, in relation to beedi; and

(ii)

any other person to whom the affairs of any beedi industrial premises are entrusted (whether such other person is called a managing agent, manager, superintendent, or by any other name);

(h)

"Government" means the State Government;

(i)

"Inspector" means the Inspector appointed under sub-section (1) of section 6;

(j)

"manufacturing process" means any process for, or incidental to, making, finishing or packing or otherwise treating any article or substance with a view to its use, sale, transport, delivery, or disposal as beedies;

(k)

"week" means a period of seven days beginning at midnight at Saturday night;

(l)

"young person" means a person who has completed fourteen years of age, but not completed eighteen years of age.

3.

Beedi industrial premises to be licensed.

- Save as otherwise provided in this Act, no place or premises shall, on and after such date as the Government may, by notification, specify in this behalf, be used as a beedi industrial premises without a licence obtained from the competent authority and except in accordance with the, terms and conditions specified therein.

4.

Licences.

(1)

Any person who intends to use any place or premises as a beedi industrial premises shall make an application in writing to the competent authority for a licence therefor together with such particulars as may be prescribed.

(2)

The application shall specify the maximum number of employees proposed to be employed at any time of the day in the place or premises and shall be accompanied by a plan of the place or premises prepared in such manner as may be prescribed.

(3)

The competent authority shall, in deciding whether to grant or refuse a licence, have regard to the following matters, namely:-

(a)

the suitability of the place or premises which is proposed to be used for the manufacture of beedies;

(b)

the status and previous experience of the applicant;

(c)

the financial resources of the applicant including his financial capacity to meet the demands arising out of the provisions of the laws for the time being in force relating to welfare of labour;

(d)

whether the application is made bona fide on behalf of the applicant himself or benami on behalf of any other person;

(e)

whether the beedi manufactured by the applicant will be sold and marketed by himself or through a proprietor or a registered user of a trade mark registered under the Trade Marks Act, 1940 (Central Act V of 1940)¹, in relation to beedi or any other person;

(f)

the welfare of labour in the locality;

(g)

the interest of the public generally; and

(h)

such other matters as may be prescribed.

(4)

(a)

A licence granted under this section shall be valid for a financial year and shall be renewed from financial year to financial year.

(b)

The competent authority shall, in deciding whether to renew a licence or to refuse a renewal thereof, have regard to the matters specified in sub-section (3).

(5)

The competent authority shall not grant or renew a licence unless it is satisfied that the provisions of this Act and the rules made thereunder have been substantially complied with.

(6)

The competent authority may cancel or suspend any licence granted or renewed under this Act if it appears to it, after giving the holder, thereof an opportunity of being heard, that such licence has been obtained by misrepresentation or fraud or that the licence has contravened, or failed to comply with, any of the provisions of this Act or the rules made thereunder or any of the terms or conditions of the licence.

(7)

The Government may issue to competent authority such orders and directions of a general character as the Government

may consider necessary in respect of any matter relating to licence under this section.

(8)

Subject to the foregoing provisions of this section, the competent authority may grant or renew licences under this Act on such terms and, conditions as it may determine. Where the competent authority refuses to grant or renew any licence, it shall do so by an order communicated to the applicant, giving the reasons in writing for such refusal.

5.

Appeals.

- Any person aggrieved by the decision of the competent authority refusing to grant or renew a licence or cancelling a licence under section 4 may, within such time as may be prescribed, appeal to such authority as the Government may specify in this behalf and such authority may make such order in the case as it thinks fit.

6.

Inspectors.

(1)

The Government may, by notification, appoint such person as possess the prescribed qualification to be Inspectors for the purposes of this Act and may assign to them such local limits as they may think it.

(2)

Every Inspector shall be deemed to be a public servant within the meaning of Indian Penal Code (Central Act XLV of 1860).

7.

Powers of Inspectors.

(1)

Subject to any rules made in this behalf, an Inspector appointed under this Act shall, for the purposes of the enforcement of this Act, have power to do all or any of the following things within the local limits for which he is appointed:-

(a)

to make such examination and hold such enquiry as may be necessary for ascertaining whether the provisions of this Act have been and are being complied with in any place or premises,

(b)

to require the production of any prescribed register and any other document relating to the manufacture of beedies,

(c)

to enter at all reasonable times any place or premises including the residence of employees when he has reasonable grounds for suspecting that any beedi industry is being carried on or, is ordinarily carried on in any such place or premises,

(d)

to exercise such other powers as may be prescribed for carrying put the purposes of this Act:

Provided that no person shall be compelled under this section to answer any question or give any evidence tending to incriminate himself.

(2)

For the purposes of clause (c) of sub-section (1), an Inspector may, after giving due notice to the employer, or in the absence of the employer, to the occupier, enter the beedi industrial premises with such assistants, if any, as he thinks fit.

(3)

Every employer shall accord to the Inspector all reasonable facilities in the discharge of his duties under this Act.

8.

Cleanliness.

- Every beedi industrial premises shall be kept clean and free from effluvia arising from any drain, privy or other nuisance and in particular-

(a)

accumulations of dirt and refuse shall be removed daily by sweeping or by any other effective method from the floors and benches of work rooms and from staircases and passages, and disposed of in a suitable manner;

(b)

the floor of every work room shall be cleaned at least once in every week by washing, using disinfectants, where

necessary, or by some other effective method;

(c)

all inside walls, and partitions, all ceilings or tops of rooms and all walls, side and tops of passages and staircases shall-

(i)

where they are painted or varnished, or where they have smooth impervious surfaces, be cleaned at least once in every period of fourteen months by such methods as may be prescribed;

(ii)

where they are painted or varnished be re-painted or re-varnished at least once in every period of five years;

(iii)

in any other case, be kept white washed or colour washed at least once in every twelve months.

9.

Ventilation.

(1)

The Government may prescribe a standard of adequate ventilation and reasonable temperature to be maintained in the beedi industrial premises.

(2)

Wherever dust or fume or other impurity of such nature and to such an extent as is likely to be injurious or offensive to the employees is given off, by reason of the manufacturing process carried on, the competent authority may require the employer to take such effective measures as may prevent its inhalation and accumulation in any work room.

10.

Over crowding.

(1)

No room in any beedi industrial premises shall be over crowded to an extent injurious to the health of the employee employed therein.

(2)

Without prejudice to the generality of sub-section (1), there shall be in every work room of such premises at least one hundred and fifty cubic feet of space for every employee employed therein, and for the purposes of this sub-section, no account shall be taken of any space which is more than ten feet above the level of the floor, of the work room.

11.

Drinking water.

(1)

In every beedi industrial premises, effective arrangements shall be made by the employer to provide and maintain at suitable points conveniently situated for all employees a sufficient supply of wholesome drinking water.

(2)

All such points shall be legibly marked "drinking water" in a language understood by the majority of the employed in the premises and no such point shall be situated within twenty feet of any washing place, urinal or latrine except with the prior approval in writing of the competent authority.

12.

Latrines and urinals.

(1)

In every beedi industrial premises, sufficient latrine and urinal accommodation of prescribed types shall be provided conveniently situated and accessible to employees at all times while they are in the beedi industrial premises:

Provided that it shall not be necessary to provide for separate urinals in the beedi industrial premises where less than fifty persons are employed or where the latrines are connected to any water borne sewage system.

(2)

The Government may prescribe the number of latrines and urinals to be provided in any beedi industrial premises in proportion to the number of male and female employees ordinarily employed therein and provide for such further matters in respect of sanitation in the beedi industrial premises including the obligation of employees in this regard, as they consider necessary in the interest of the health of the employees employed therein.

13.

Washing facilities.

- In every beedi industrial premises where blending and sewing of tobacco or warming of beedies in hot ovens is carried on, the employer shall provide such washing facilities for the use of the employees as may be prescribed.

14.

Creches.

(1)

In every beedi industrial premises wherein more than fifty female employees are ordinarily employed, there shall be provided and maintained a suitable room or rooms for the use of children under the ages of six years of such female employees.

(2)

Such rooms shall provide adequate accommodation, shall be adequately lighted and ventilated, shall be maintained in a clean and sanitary condition and shall be under the charge of woman trained in the care of children and infants.

(3)

The Government may make rules-

(a)

prescribing the location and the standards in respect of construction, accommodation, furniture and other equipment of rooms to be provided under this section;

(b)

requiring the provision on beedi industrial premises to which this section applies of additional facilities for the care of children belonging to female employees, including suitable provision of facilities for washing and changing their clothing;

(c)

requiring the provision in any beedi industrial premises of free milk or refreshment or both for such children;

(d)

requiring that facilities shall be given in any beedi industrial premises for the mothers of such children to feed them at necessary intervals.

15.

First Aid.

(1)

There shall, in every beedi industrial premises, be provided and maintained so as to be readily accessible during all working hours, first aid boxes or cupboards equipped with the prescribed contents and the number of such boxes or cupboards to be provided and maintained shall not be less than one for every one hundred and fifty employees ordinarily employed at any one time in the premises.

(2)

Nothing except the prescribed contents shall be kept in a first aid box or cupboard.

(3)

Each first aid box or cupboard shall be kept in the charge of a person who is trained in first aid treatment and who shall always be readily available during the working hours of the beedi industrial premises.

16.

Canteens.

- The Government may make rules requiring that in any specified beedi industrial premises wherein not less than two hundred and fifty employees are ordinarily employed, a canteen shall be provided and maintained by the employer for the use of the employees.

17.

Working hours.

- No employee shall be required or allowed to work in a beedi industrial premises for more than nine hours in any day or more than forty-eight hours in any week:

Provided that any adult employee may be allowed to work in such beedi industrial premises for any period in excess of the limit fixed under this section, subject to payment of overtime wages, if the period of work, including overtime work, does not exceed ten hours in any day and in the aggregate fifty-four hours in any week.

18.

Wages for overtime work.

(1)

Where any employee employed in any beedi industrial premises is required to work overtime, he shall be entitled in respect of such overtime work to wages at twice the ordinary rate of wages.

(2)

Where the employees in a beedi industrial premises are paid on a piece rate basis, the Government shall, in consultation with the employer concerned and the representative of the employees, fix, for the purposes of this section, time rates as nearly as possible equivalent to the average rate of earnings of those employees, and the rates so fixed shall be deemed to be the ordinary rates of wages of those employees.

(3)

For the purposes of this section, "ordinary rate of wages" means the basic/ wages plus such allowances, including the cash equivalent of the advantage accruing through the concessional sale to employees of foodgrains and other articles, as the employees is for the time being entitled to, but does not include a bonus.

(4)

The cash equivalent of the advantage accruing through the concessional sale to an employee of foodgrains and other articles shall be computed as often as may be prescribed on the basis of the maximum quantity of foodgrains and other articles admissible to a standard family.

Explanation 1. - "Standard family" means a family consisting of the employee, his or her spouse, and two children requiring in all three adult consumption units.

Explanation 2. - "Adult consumption unit" means the consumption unit of a male above the age of fourteen years and the consumption unit of a female above the age of fourteen years and that of a child shall be calculated at the rate of 8 and 6, respectively, of one adult consumption unit.

19.

Interval for rest.

- The periods of work for employees in a beedi industrial premises each day shall be so fixed that no period shall exceed five hours and that no employee shall work for more than five hours before he has had an interval for rest of at least half-an-hour.

20.

Spread over.

- The periods of work of an employee in a beedi industrial premises shall be so arranged that along with his interval for rest, they shall not spread over more than ten hours in any day.

21.

Weekly holidays.

(1)

Every beedi industrial premises shall remain entirely closed except for wetting of wrapping leaves on one day in the week which day shall be specified by the employer in a notice permanently exhibited in a conspicuous place in the premises and the day so specified shall not be altered by the employer more often than once in three months and except with the previous written permission of the Inspector.

(2)

Notwithstanding anything in sub-section (1), an employee employed in the said premises for wetting of wrapping leaves on the day on which it has remained closed in pursuance of sub-section (1) shall be allowed a substituted holiday on one of the three days immediately before or after the said day.

(3)

Notwithstanding any contract to the contrary, no deduction shall be made from the wages of any employee on account of any holiday allowed to him under this section.

22.

Notice of periods of work.

(1)

There shall be correctly maintained and displayed in every beedi industrial premises a notice of periods of work in such form and in such manner as may be prescribed showing clearly for every day the periods during which employees may be required to work.

(2)

(a)

A copy of the notice referred to in sub-section (1) shall be sent in triplicate to the Inspector having jurisdiction over the beedi industrial premises within two weeks from the date of grant of licence for the first time in the case of premises carrying on work at the commencement of this Act, and in the case of premises beginning work after such commencement, before the day on which week is begun in the premises.

(b)

Any proposed change in the system of work which will necessitate a change in the notice referred to in sub-section (1) shall be notified to the Inspector in triplicate before the change is made and, except with the previous sanction of the Inspector, no such change shall be made until one week has elapsed since the last change.

23.

Hours of work to correspond with notice under section 22.

- No employee shall be employed in any beedi industrial premises otherwise than in accordance with the notice of work displayed in the premises under section 22.

24.

Prohibition of employment of children.

- No child shall be required or allowed to work in any beedi industrial premises.

25.

Prohibition of employment of women or young person during certain hours.

- No woman or young person shall be required or allowed to work in any beedi industrial premises except between 6 a.m. to 7 p.m.

26.

Annual leave with wages.

(1)

Every employee who has worked for a period of not less than 240 days in a beedi industrial premises during a calendar year shall be allowed in the subsequent calendar year, leave with wages for a number of day calculated-

(i)

in the case of an adult at the rate of one day for every twenty days of work performed by him during the previous calendar year;

(ii)

in the case of young person, at the rate of one day for every fifteen days of work performed by him during the previous calendar year.

Explanation 1. - The leave admissible under this sub-section shall be exclusive of all holidays whether occurring during or at the beginning or at the end of the period of leave.

Explanation 2. - For the purpose of this sub-section-

(a)

any days of lay-off, by agreement or contract as permitted under the Standing Orders of the beedi industrial premises concerned;

(b)

in the case of a female employee, authorised absence for maternity purposes for any number of days not exceeding twelve weeks;

(c)

the leave earned in the year prior to that in which the leave is enjoyed;

shall be deemed to be days on which the employee has worked for the purpose of computation of the period of 240 days, but not for earning leave.

(2)

An employee whose service commences otherwise than on the first five days of January, shall be entitled to leave calculated in accordance with sub-section (1) if he has worked for two-thirds of the total number of days in the remainder of the calendar year.

(3)

If an employee is discharged or dismissed from service during the course of the year, he shall be entitled to leave with wages at the rate laid down in sub-section (1) even if he has not worked for the entire period;-specified in sub-section (1) or sub-section (2) entitling him to earn leave.

(4)

In calculating leave under this section, any fraction of leave of half a day or more shall be treated as one full day's leave and any fraction less than half a day shall be omitted.

(5)

If an employee does not in any calendar year take the whole of the leave allowed to him under sub-section (1) or sub-section (2), as the case may be, any leave not taken by him shall be added to the leave to be allowed to him in the succeeding calendar year:

Provided that the total number of days of leave that may be carried forward to a succeeding year shall not exceed thirty in the case of an adult or forty in the case of a young person.

(6)

An application by an employee for the whole or any portion of the leave allowed under sub-section (1) or sub-section (2) shall be in writing and ordinarily be made sufficiently in advance of the date on which he wishes his leave to begin.

(7)

If the employment of an employee who is entitled to leave under sub-section (1) or sub-section (2), as the case may be, is terminated by the employer before he has taken the entire leave to which he is entitled or if having applied for leave he has not been granted such leave, or if the employee quits his employment therefore he has taken the leave, the employer shall pay him the amount payable under section 27 in respect of leave not taken and such payment shall be made, where the employment of the employee is terminated by the employer, before the expiry of the second working day after such termination and where the employee quits his employment, on or before the next pay day.

(8)

The leave not availed of by an employee shall not be taken into consideration in computing the period of any notice required to be given before discharge or dismissal.

27.

Wages during leave period.

(1)

For the leave allowed to him under section 26, an employee shall be paid at a rate equal to the daily average of his total full-time earnings for the days on which he worked during the month immediately preceding his leave exclusive of any overtime and bonus, but inclusive of dearness allowance.

(2)

An employee who has been allowed leave for not less than four days in the case of an adult and five days in the case of a young person shall, before his leave begins, be paid wages due for the period of the leave allowed.

28.

Application of the Payment of Wages Act, 1936 to beedi Industrial premises.

(1)

Notwithstanding anything contained in the Payment of Wages Act, 1936 (Central Act IV of 1936) (hereinafter in this section referred to as the said Act), the Government may, by notification, direct that, subject to the provisions of sub-section (2), the said Act or any of the provisions thereof or the rules made thereunder shall apply to all or any class of employees in beedi industrial premises to which this Act applies.

(2)

On the application of the provisions of the said Act to any beedi industrial premises under sub-section (1), the Inspector appointed under this Act shall be deemed to be the Inspector for the purpose of the enforcement of the provisions of the said Act within the local limits of his jurisdiction.

(3)

The Government may, by like notification, cancel or vary any notification issued under sub-section (1).

29.

Special provisions.

(1)

The Government may permit the wetting or cutting of, wrapping leaves by female employees outside the beedi industrial premises on an application made by the employer on behalf of such employees.

(2)

The employer shall maintain in the prescribed form a record of the work permitted under sub-section (1) to be carried on

outside the beedi industrial premises.

(3)

Save as otherwise provided in this section, no employer shall require or allow any manufacturing process connected with the production of beedies to be carried on outside the beedi industrial premises.

30.

Onus as to age.

(1)

When any act or omission would, if a person were under a certain age, be an offence punishable under this Act and such person is in the opinion of the Court prima facie under such age, the burden shall be on the accused to prove that such person is not under such age.

(2)

A declaration in writing by a Medical Officer not below the rank of a Civil Assistant Surgeon relating to an employee that he has personally examined him and believes him to be under the age stated in such declaration shall, for the purposes of this Act and the rules made thereunder, be admissible as evidence of the age of that employee.

31.

Notice of dismissal.

(1)

No employer shall dispense with the services of an employee employed continuously for a period of not less than six months, except for a reasonable cause and without giving such employee at least one month's notice or wages in lieu of such notice, provided, however, that such notice shall not be necessary where the services of such employee are dispensed with on a charge of misconduct supported by satisfactory evidence recorded at any enquiry held for the purpose.

(2)

(a)

Any employee discharged, dismissed or retrenched, may appeal to such authority and within such time as may be prescribed either on the ground "that there was no reasonable cause for dispensing with his services or on the ground that he had not been guilty of misconduct as held by the employer.

(b)

The appellate authority may, after giving notice in the prescribed manner to the employer and the employee, dismiss the appeal or direct the reinstatement of the employee with or without wages for the period he was kept out of employment or direct payment of compensation without reinstatement or grant such other relief as it deems fit in the circumstances of the case.

(3)

The decision of the appellate authority shall be final and binding on both the parties, not be liable to be questioned in any Court of Law, and be given effect to within such time as may be specified in the order of the appellate authority.

32.

Penalty for obstructing Inspectors.

- Whoever wilfully obstructs an Inspector in the exercise of any power conferred on him by or under this Act, or fails to produce on demand by an Inspector, any register or other document in his custody kept in pursuance of this Act or of any rules made thereunder or conceals or prevents any employee in a beedi industrial premises from appearing before, or being examined by, an Inspector, shall on conviction, be punishable with imprisonment for a term which may extend to three months or with fine which may extend to five hundred rupees or with both.

33.

General penalty for offences.

(1)

Save as otherwise expressly provided in this Act, any person who contravenes any of the provisions of this Act or any rule made thereunder, or fails to pay wages or compensation in accordance with any order of the appellate authority passed under clause (b) of sub-section (2) of section 31, shall, on conviction, be punishable for the first offence, with fine which may extend to two hundred and fifty rupees, and for a second or any subsequent offence with imprisonment for a term which shall not be less than one month or more than six months or with fine which shall not be less than one hundred rupees or more than five hundred rupees, or with both.

(2)

(a)

Any employer who fails to reinstate an employee in accordance with any order of the appellate authority passed under clause (b) of sub-section (2) of section 31 shall, on conviction, be punishable with fine which may extend to two hundred and fifty rupees.

(b)

Any employer, who after having been convicted under clause (a), continues to fail to reinstate an employee in accordance with the order mentioned in that clause shall, on conviction, be punishable for each day after the previous date of conviction during which he continues so to offend, with fine which may extend to twenty rupees.

(c)

Any Court trying an offence punishable under this sub-section may direct that the whole or any part of the fine realised from the accused shall be paid by way of compensation to the person, who, in its opinion, has been injured by such failure.

(3)

Any compensation required to be paid by an employer under clause (b) of sub-section (2) of section 31 but not paid by him shall be recoverable as delayed wages under the provisions of the Payment of Wages Act, 1936 (Central Act IV of 1936).

(4)

It shall be no defence in a prosecution of any person for contravention of section 3 that any manufacturing process connected with the production of beedi was carried on by such person himself or by any member of his family or by any other person living with, or dependent on, such person.

34.

Indemnity.

- No suit, prosecution, or other legal proceedings shall lie against any person for anything which is in good faith done or intended to be done under this Act.

35.

Cognizance of offence.

(1)

No Court shall take cognizance of any offence under this Act except on complaint by, or with the previous sanction in writing of, an Inspector.

(2)

No Court below that of a Presidency Magistrate or of a Magistrate of the First Class shall try any offence punishable under this Act.

36.

Central Act XX of 1946 to apply to beedi industrial premises.

- The provisions of the Industrial Employment (Standing Orders) Act, 1946 (Central Act XX of 1946) as in force for the time being apply to every beedi industrial premises wherein fifty or more employees are employed or were employed on any one day of the preceding twelve months as if such industrial premises were an industrial establishment to which the aforesaid Act has been applied by a notification under sub-section (3) of section 1 thereof, and as if the employee in the said premises were a workman within the meaning of that Act.

37.

Central Act XCV of 1947 to apply to beedi industrial premises.

- The provisions of the Industrial Disputes Act, 1947 (Central Act XIV of 1947), shall apply to matters arising in respect of all beedi industrial premises.

38.

Central Acts not to apply to beedi industrial premises.

- On and from the date on which this Act comes into force, the Factories Act, 1948 (Central Act XLIII of 1948), and the Tamil Nadu Shops and Establishments Act, 1947 (Tamil Nadu Act XXXVI of 1947), shall cease to apply to beedi industrial premises.

39.

Rights and privileges under other laws, etc. not affected.

(1)

Nothing contained in this Act shall affect any rights or privileges which any employee working in any beedi industrial premises is entitled to on the date on which this Act comes into force, under any other law, contract, custom or usage, applicable to such beedi industrial premises, if such rights or privileges are more favourable to him than those to which he would be entitled under this Act.

(2)

If any question arises whether the rights or privileges aforesaid are more favourable to any employee than those to which he would be entitled under this Act or whether all or any of the provisions of this Act apply to a beedi industrial premises or to a person employed therein, it shall be decided by the Commissioner of Labour and his decision thereon shall be final and not be liable to be questioned in any Court of law.

40.

Power to exempt.

- The Government may, by notification, exempt, subject to such conditions and restrictions as they may impose,-

(a)

any beedi industrial premises,

(b)

any beedi industry, or

(c)

any class of employees, from all or any of the provisions of this Act or of any rules made thereunder.

41.

Power to make rules.

(1)

The Government may, by notification, make rules to carry out the purposes of this Act.

(2)

Without prejudice to the generality of the foregoing power, such rules may provide for-

(a)

the terms and conditions subject to which a licence may be granted or renewed under this Act and the fees to be paid in respect of such licence;

(b)

the form of application for a licence under this Act and the documents and plans to be submitted together with such application;

(c)

submission of a monthly return by an employer to the competent authority specifying the quantity of beedi tobacco released by the Central Excise Department and the number of beedies manufactured by him;

(d)

the time within which appeals may be presented under this Act;

(e)

the manner in which the cash equivalent of the advantage accruing through the concessional sale to an employee of foodgrains and other articles shall be computed;

(f)

the records and registers that shall be maintained in beedi industrial premises for the purpose of securing compliance with the provisions of this Act and the rules made thereunder;

(g)

any matter expressly required or allowed by this Act to be prescribed.

(3)

All rules made and all notifications issued under this Act, shall, as soon as possible after they are made or issued, be placed on the table of [the Legislative Assembly]

[Substituted for the word 'both the Houses of the Legislature' by the Tamil Nadu Adaptation of Laws and Order, 1987.]

and shall be subject to such modifications by way of amendment or repeal, as the [the Legislative Assembly]

[Substituted for the word 'both the Houses of the Legislature' by the Tamil Nadu Adaptation of Laws and Order, 1987.]

may make within fourteen days on which the House actually sits either in the same session or in more than one session.

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